

HALBERD QUINN LLP: KNOW-HOW NOTE

WORKING-DAY NOTICE PERIODS: RECENT AUTHORITY

Circulated to: Construction and Engineering Group

Author: Priya Sandhu, Professional Support Lawyer

Date: 22 May 2026

1. THE NEW DECISION

Renwick v Astor Grain [2025] UKSC 9 overrules Harrow Timber Co v Bellamy Frères [2018] EWCA Civ 1140 on the construction of working-day notice periods. The Supreme Court held that the day of delivery is included in the count where the contract does not say otherwise, reversing the Court of Appeal's approach in Harrow Timber.

2. PRACTICAL EFFECT

Any advice that excluded the day of delivery when calculating a working-day notice period under Harrow Timber should be revisited. On the Supreme Court's approach a notice period that was one day late on the old authority may in fact be in time, and vice versa.

Note · continued

3. A SEPARATE POINT · NOT AFFECTED

Practitioners should note that *Beaumont Freight Ltd v Cassera Shipping* [2021] EWCA Civ 640, on the separate question of notice by electronic means, is unaffected by *Renwick* and remains good law.

4. ACTION

Fee earners should check any live matter that relies on *Harrow Timber Co v Bellamy Frères* for a notice-period calculation and consider whether the advice needs to be revisited in light of *Renwick v Astor Grain*.

Priya Sandhu, Professional Support Lawyer